

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JUNE 11, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE N.A. v. AHNYAYALA THOMPSON
Case No. CL24-07920**

Motion to Deem Matters Admitted

Tentative Ruling:

Plaintiff's unopposed Motion to Deem Matters Admitted is GRANTED. Defendant AHNYAYALA THOMPSON shall be deemed to have admitted all propounded Requests for Admission (Set One).

The proposed order lodged with the court will be processed forthwith.

While not mandated by the Code of Civil Procedure, it is a well-considered practice to meet and confer by at least sending a letter when no response to a request for admissions is received.

**CAPITAL ONE N.A. v. MICHAEL J. BREEDLOVE
Case No. CL25-04620**

Motion to Deem Matters Admitted

TENTATIVE RULING:

Plaintiff's unopposed Motion to Deem Matters Admitted is GRANTED. Defendant MICHAEL J. BREEDLOVE shall be deemed to have admitted all propounded Requests for Admission (Set One).

The proposed order lodged with the court will be processed forthwith.

The court appreciates that while a meet and confer is not required by the Code of Civil Procedure, attorney Carr still made the effort.

Capital One N.A. v. Jose Melchor
Case No. CL25-11075

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant JOSE MELCHOR's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc., § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

MIGUEL HERRERA GARCIA, individually and on behalf of other members of the general public similarly situated, vs. CHAMPION SCAFFOLD SERVICES INC. Case No. CU24-06466

Motion for Final Approval of Class Action and PAGA Settlement

TENTATIVE RULING:

Parties to appear.

Plaintiff MIGUEL HERRERA GARCIA moves for final approval of the settlement reached with Defendant CHAMPION SCAFFOLD SERVICES. The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business

expenses, violation of Business and Professions Code sections 17200 et seq. and PAGA penalties.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable. In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned. Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. Fairness is presumed where a settlement is the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.)

On December 4, 2025, this court granted preliminary approval of the proposed settlement. Those findings are incorporated by reference.

The class period is from August 26, 2020 through September 22, 2025 with 297 members. The PAGA period is from September 9, 2023 through September 22, 2025. The gross settlement is \$750,000. There have been no objections from class members and no class members have opted out. Unfortunately 55 notices were returned as undeliverable but after skip-trace efforts only 29 notices are now considered undeliverable. The highest estimated payment is \$10,849.75 and the lowest \$41.25 with the average at \$1417.26.

The settlement of \$37,500 for PAGA penalties with distribution of 65% to LWDA and 35% to aggrieved employees is reasonable.

The court finds an enhancement award to the named plaintiff of \$6,000 --not \$10,000-- is reasonable given the actual results in this case and the 20 hours he expended. The court does not find the statement that plaintiff believed he could be responsible for attorneys' fees and costs to be credible given the contingent nature of Plaintiff's counsel's representation and the type of litigation.

The costs of the settlement administrator of \$7,990 are reasonable.

The court approves \$21,171.26 in reimbursement for reasonable costs incurred by plaintiff's counsel.

The court finds that while counsel is experienced in this type of litigation, the suit did not involve any active litigation, was 100% remote, and used largely cookie-cutter pleadings (although they were some of the better ones the court has reviewed). Wage and hour class action cases are now considered fairly routine and common. Counsel's fee request for one-third of the gross settlement - \$250,000 - is excessive and would result in an overall hourly rate of \$1,250 which is not reasonable. The hourly rates claimed by class counsel are excessive by Solano County and Northern California standards. It is also unclear why so many experienced attorneys touched this file which results in a greater number of claimed hours than necessary. (Gomez Decl ¶ 18.)

An award of 25%, or \$187,500, is reasonable and results in a fee award with a lodestar that is more consistent with Solano County and Northern California rates and allows for a modest multiplier but ensures that the class members who have been injured are adequately compensated.

Plaintiff to prepare the order after hearing and Judgment and defense shall approve as to form pursuant to California Rules of Court, rule 3.1312.

This matter is calendared for dismissal hearing on March 4, 2027 at 8:30. Counsel and settlement administrator shall file a declaration fifteen calendar days prior to confirm that all funds have been distributed and the unclaimed funds have been deposited with the State.

NO NAME GIVEN MOHIT v. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-07798

Plaintiff's Motion to Compel Further Responses to Requests for Production and Special Interrogatories

TENTATIVE RULING

Plaintiff NO NAME GIVEN MOHIT moves to compel Defendant AMERICAN HONDA MOTOR CO., INC. to further respond to sixteen of his requests for production, set one and eleven of his special interrogatories, set one. Plaintiff alleges breaches of express and implied warranties under the Song-Beverly Consumer Warranty Act in relation to his purchase of a 2025 Honda Accord hybrid car (the "Vehicle") manufactured and warranted by Defendant.

Notice of Tentative Ruling. Plaintiff's notices of motion do not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). Plaintiff is cautioned to observe local rules going forward.

Meet and Confer Efforts. The court first considers the adequacy of the parties' efforts to meet and confer to work these issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue

presented by the motion” to compel. Plaintiff’s counsel’s declarations accompanying the motions states that Plaintiff’s counsel served the discovery requests at issue on October 27, 2025 and received Defendant’s substantive responses on January 5, 2026. (Declaration of Kristina Amidi in Support of Motion to Compel Further Responses to Special Interrogatories (“Amidi Dec.”) at ¶¶ 3-5, Exhibits A-C.) Plaintiff’s counsel met and conferred with defense counsel by phone on February 11, 2026 but could not reach a resolution of all issues. (*Id.* at ¶¶ 6-7, Exhibit D.)

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].)

The court finds Plaintiff’s meet and confer efforts adequate.

Requests for Production. Request #45. Plaintiff seeks all complaints by owners of 2025 Honda Accord hybrids that are “the same or substantially similar to any of the complaints that the SUBJECT VEHICLE was presented to YOUR authorized repair facilities for repair during the warranty period.” This request is vague, especially given the contents of the cookie cutter complaint. Plaintiff’s complaint does not identify their own “complaints” with specificity. This should have been resolved through meet and confer. Plaintiff shall revise its request to identify the specific categories of documents requested that match the “complaints” that Plaintiff contends it has about its car in the next 10 calendar days and serve by email. Defendant shall produce responsive documents per the Code of Civil Procedure.

Requests #56-69. All of these requests seek information pertaining to Defendant’s efforts to preserve information material to this litigation, how Defendant searches its databases for material information, the maintenance and backing up of its databases, and the like. This “discovery on discovery” is not reasonably calculated to lead to admissible evidence. It has no bearing on the issues of this Song-Beverly action. Plaintiff’s authority is not on point. In *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243 the appellate court found that a trial court did not abuse its discretion in ordering a defendant county to respond to a special interrogatory asking it to give information about its record retention policies. Here Defendant’s record retention policies are not relevant to the issues framed in the operative pleading. Defendant **need not** further respond.

Special Interrogatories. All of Plaintiff’s special interrogatories at issue pertain to Defendant’s recordkeeping practices. For the same reasons as with the requests for production of documents pertaining to Defendant’s recordkeeping practices Defendant **need not** further respond.

Sanctions. Code of Civil Procedure sections 2030.300, subdivision (d) [interrogatories] and 2031.310, subdivision (h) [inspection demands], require sanctions against a party

that unsuccessfully makes or opposes a motion to compel further responses to discovery requests, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. The court finds that the circumstances weigh against the imposition of sanctions.

ROSENBERG, et al. v. ARKSHIRE FINANCIAL, LLC, et al.
Case No. CU26-00107

Motion to Compel Arbitration and Stay Proceedings

TENTATIVE RULING

A dispute exists as to whether Plaintiffs executed an ICA that included an arbitration provision. Plaintiffs contend they did not, but that they signed a 2016 ICA that did not have the arbitration clause. Yet Plaintiffs attach an unsigned “2023” ICA with Arkshire to the complaint that forms the basis of the action that includes arbitration terms which they contend they “accepted” while arguing the contract is missing material terms. (Exh. B, ¶ 25, p 11.) Defendant ARKSHIRE presents evidence of an electronic “signature” on a 2024 ICA that was executed at a conference by each Plaintiff.

As contemplated by statute, the parties stipulated to stay discovery pending resolution of the motion to compel. It appears to the court that additional discovery is appropriate to resolve the limited issue as to what contracts exist between the parties and whether Plaintiffs executed the 2024 version of the ICA that contains the arbitration terms while attending the conference or is there yet another 2023 version floating around?

This limited discovery does not constitute a waiver of the right to compel arbitration. (See e.g. *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412-413; *Bouton v. USAA Casualty Ins. Co.* (2008) 167 Cal.App.4th 412, 427; *Aronow v. Superior Court* (2022) 76 Cal.App.5th 865, 884; *Brown v. Wells Fargo Bank, NA* (2008) 168 Cal.App.4th 938, 951.)

This matter is continued to permit the parties to engage in depositions of Plaintiffs and Defendant’s PMK(s) as to the formation of contract(s) and arbitration agreement(s), if any, to be completed during the next 45 days.

Defendant may supplement its moving papers in a further pleading not to exceed 7 pages to be filed and served in 60 days. Plaintiff may file and serve a supplemental opposition not to exceed 7 pages in 75 days and Defendant may file and serve a supplemental reply in 90 days not to exceed 3 pages. Hearing on the petition to compel arbitration is continued to October 20, 2026 at 8:30.

MELISSA LEITZKE v. CITY OF VALLEJO
Case No. CU23-02170

Plaintiff's Motion to Compel Further Responses to Requests for Production, Sets One and Two

TENTATIVE RULING

Plaintiff MELISSA LEITZKE moves to compel Defendant CITY OF VALLEJO to further respond to her requests for production of documents, sets one and two.

The court finds Plaintiff made adequate efforts to meet and confer prior to filing this motion. Plaintiff's counsel's declaration shows that the parties met and conferred extensively concerning the document requests at issue; however, Defendant did not afford Plaintiff a further extension of her April 29, 2026 motion to compel deadline subsequent to Plaintiff's April 27, 2026 meet and confer letters. The instant motion was filed on April 29, 2026.

Defendant states in opposition to this motion that it has complied and produced the requested discovery. However, Plaintiff states in her reply brief that Defendant's document production remains incomplete in four ways:

- 1) Defendant has not reproduced all of its document production in native electronic storage format with metadata;
- 2) During meet and confer discussions Defendant agreed to provide Plaintiff a declaration concerning the custodians of records searched, search methodology used, date ranges, and litigation holds, but Defendant has provided such a declaration only with regard to its fire department records and not its human resources or city attorney records;
- 3) Defendant's privilege log does not include two pages of withheld documents; and
- 4) Defendant has not produced two pages of replies to Linda Daube's emails or the contents of text messages between Chief Long and Battalion Chief Hickey concerning Plaintiff.

Defendant's opposition provided no argument against production in full in compliance with the first, second, and third topics remaining in dispute. Concerning the fourth topic in dispute, Defendant's opposition argues that no relevant text messages remain unproduced; however, Long's testimony at deposition is confusing as to whether the text messages exist and were produced and Defendant's special interrogatory responses state that it searched employee email inboxes but not phone text message inboxes despite Long's testimony that his work phone (on which any responsive text conversation with Hickey would be found) was in Defendant's possession. Defendant's opposition does not argue against production of the replies to Linda Daube's emails. The declaration of Defendant's witness James Rustice states only that the fire department has produced all responsive records in its possession and does not account for Defendant's other relevant departments.

Defendant must further respond to address the four identified gaps remaining in its discovery responses.

The court finds that the circumstances weigh against the imposition of sanctions.

Defendant's Motion for Summary Judgment

TENTATIVE RULING

Defendant CITY OF VALLEJO moves for summary judgment, or in the alternative summary adjudication, against Plaintiff MELISSA LEITZKE's first amended complaint ("1AC") alleging retaliation, failure to prevent discrimination or harassment, and gender discrimination, all in violation of the Fair Housing and Employment Act (the "FEHA").

Summarized, Plaintiff alleges that she worked for Defendant as a firefighter for over twenty years, commencing in January 2000, was promoted to Engineer in 2012 and attained the rank of Captain in 2016. In her twenty-year career with the fire department she was never the subject of discipline. (UMF #7, 9; PSSMF #223-224, 227-228.)

In June 2022 Plaintiff alleges she responded to and helped extinguish the "Broadway Fire" in Vallejo. A civilian complaint from a reporter alleging that Plaintiff sprayed him with a firehose at the scene led to Plaintiff being investigated and demoted to Engineer. Chief Kyle Long demoted Plaintiff, despite investigative findings that she did not intentionally spray Keys with her firehose and a Skelly hearing officer recommending a lower level of discipline, because he lost confidence in her leadership. Following an arbitration, Plaintiff's discipline was reduced to written warning and she was reinstated to Captain.

Plaintiff contends she was punished unfairly on the basis of her gender and on the basis of having engaged in protected activity in the form of complaints about gender discrimination prior to the Broadway Fire and the demotion decision.¹

Legal Standard. A defendant may move for summary adjudication as to one or more causes of action within an action if the defendant contends that the cause of action has no merit and the motion will completely dispose of the cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit when one or more of its elements cannot be established or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (o).) A party may also move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty if the

¹ The 1AC filed on August 15, 2023, does not allege constructive discharge, nor does the complaint with the Civil Rights Department. (Exh. 113.) Plaintiff's declaration now contends she was constructively discharged in November 2024. (Leitzke Decl., ¶¶ 29-30.) In her deposition, Plaintiff acknowledged she in November 2024 had been off on sick leave for "a while" and submitted her resignation on November 10, 2024. (Leitzke Depo, 462:16-25; 464:3-5.)

parties stipulate to the adjudication and declare such adjudication will further judicial economy. (Code Civ. Proc., § 437c, subd. (t).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2).) A summary adjudication motion is therefore properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor on the relevant cause of action or issue and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary adjudication, provided they contain admissible evidence. (Code Civ. Proc., § 437c, subds. (b)(1), (d), (f)(2).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)

Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

When a plaintiff alleges discriminatory or retaliatory adverse employment action and the defendant seeks summary judgment, California courts specifically employ the burden shifting analysis from *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792 to determine whether there are triable issues of material fact. (*Loggins v. Kaiser Permanente Internat.* (2007) 151 Cal.App.4th 1102, 1108-1109 (*Loggins*).) Applying that framework here, Defendant must negate Plaintiff's prima facie case for her claims of discrimination and retaliation under the FEHA by showing she lacks evidence that 1) she engaged in a protected activity, 2) Defendant subjected her to an adverse employment action, and/or 3) there is a causal link between the two. (*St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301, 314; *Sada v. Robert F. Kennedy Medical Center* (1997) 56 Cal.App.4th 138, 150-151.) If Defendant cannot do so it must then carry the burden of showing a legitimate, non-retaliatory reason for the adverse action. If Defendant meets that showing, the burden shifts back to Plaintiff on summary judgment to show substantial responsive evidence that the proffered reasons are untrue or pretextual. (*Loggins* at p. 1109.)

Objections to Evidence. The court disregards Defendant's supplemental statement of undisputed facts submitted with its reply. (See *United Community Church v. Garcin* (1991) 31 Cal.App.3d 327 [separate statements exist to afford due process to opposition].)

In ruling on a motion for summary adjudication the court need only rule on those evidentiary objections that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) The court deems the following of Defendant's objections to Plaintiff's evidence material to the disposition of the motion.

Defendant's #2. **Overruled.** Plaintiff's declaration that she was the only female captain and giving details of what positions the handful of other women in the department held during her time there is relevant to this gender discrimination case. She also does not lack personal knowledge of her coworkers' positions.

Defendant's #5, 6. **Overruled.**

Defendant's #13-16. **Overruled.** Plaintiff's statements of what happened at the Broadway Fire and who bore what responsibilities at the scene are all admissible evidence, not lacking in foundation or personal knowledge, because she was there fighting that fire as a firefighter with knowledge of firefighting practices.

Defendant's #18. **Sustained.** Distinct from the evidence targeted in Defendant's #13 to 16, here Plaintiff merely states that she was "informed" that a male captain at the Broadway Fire scene let a child use a firehose, with no stated basis for her knowledge.

Defendant's #19. **Overruled in part and granted in part.** Leitze does not have personal knowledge about the city's administrative leave practices.

Defendant's #20-21. **Overruled.**

Defendant's #22. **Overruled.** Plaintiff's statements here are all relevant and within her personal knowledge.

Defendant's #25. **Overruled.**

Defendant's #26. **Sustained.**

Defendant's #29-30. **Overruled.** Plaintiff's statement that Captain Kevin Hickey was incident commander with overall responsibility for civilian safety during the Broadway Fire and was not investigated or disciplined in connection with the spraying incident is admissible because Plaintiff has knowledge of how fire department practices work and were applied at the Broadway Fire she helped extinguish, as well as the Broadway Fire spraying incident investigation in which she was involved.

Defendant's #31-34. **Sustained.** Plaintiff's statements relating that she was "aware" or "informed and believes" of various incidents of male firefighters engaging in misconduct without disciplinary action lack foundation.

Defendant's #40-42. **Sustained.**

FEHA Gender Discrimination. Plaintiff's membership in the relevant protected class – women – is undisputed. Her suffering of an adverse employment action in the form of her demotion from Captain is also undisputed. (Motion for Summary Judgment at 21:9-10.) This shifts the burden to Defendant to establish a legitimate, non-discriminatory reason for its employment action.

Defendant presents undisputed material facts supporting a legitimate, non-discriminatory reason for the adverse employment action: an unsolicited complaint from a reporter that Plaintiff sprayed water in an unnecessary and unsafe manner which hit the reporter's camera equipment, which was substantiated by an independent investigator and found to have created a potential safety hazard in violation of fire department rules and regulations. (Undisputed Material Facts ("UMF") #18-26.) On January 27, 2023, the *Skelly* officer concluded that there was not evidence of intentional overspray but that some supervisory negligence by Leitzke occurred and that a reprimand or suspension was a better alternative given her discipline-free history. (Ex. 107.) Despite this recommendation, the Chief exercised his discretion to impose a higher level of discipline on the basis that he had lost confidence in Plaintiff's ability to supervise other firefighters in the position of Captain. (UMF #31.) Following an arbitration, the arbitrator reversed the demotion, concluding that given Plaintiff's discipline-free history and the nature of the over-spraying allegation, a written warning would have been an effective remedial action. The arbitrator reinstated Plaintiff with backpay. (Ex. 133.) (Notably, nothing in the arbitrator's decision suggests that Plaintiff claimed the disciplinary action was the result of gender discrimination.)

As Defendant established a legitimate, non-discriminatory basis for the adverse employment action, the burden shifts to Plaintiff to demonstrate with substantial evidence that the supposed legitimate reason is untrue or pretextual.

Plaintiff fails to meet this burden.

Plaintiff contends that the City's reasons for demotion were pretextual because she was disciplined in a manner that was disproportionate to other males or that other males were not disciplined at all.

Plaintiff contends she alone was punished for the Broadway Fire spraying incident despite the involvement of male colleagues with responsibility for civilian safety on the scene who failed to perform their duties. However, only Plaintiff sprayed a bystander with water during the fire "mop up," despite being aware that bystanders were nearby. (UMF #20, 83.) To establish discrimination based on disparate discipline, it must appear "that the misconduct for which the employer discharged the plaintiff was the same or similar to what a similarly situated employee engaged in, but that the employer did not discipline the other employee similarly. (*McGrory v. Applied Signal Technology* (2013) 212 Cal.App.4th 1510, 1535.) The evidence of a firefighter showing a child how to operate a hose at the scene of the Broadway fire does not display comparable misconduct either. (UMF #319; PSSM 248.)

Finally, Plaintiff points to instances of misconduct by male colleagues whom she claims were not disciplined for misconduct with the same severity. But Plaintiff fails to present admissible evidence to support these contentions, relying only on her “awareness” and “information and belief.” Further, the descriptions of those incidents do not appear to involve (1) the same supervising Fire Chief; (2) individuals in similar supervisory category as herself; (3) similar misconduct involving public safety; and (4) temporal proximity. Comparator evidence must involve employees that are both similarly situated to the plaintiff and who engaged in similar misconduct to be relevant. (*McGrory* at p. 1535 [employee in manager position justifiably treated differently from employee in subordinate position].) The only other evidence of disciplinary action directly contradicts Plaintiff’s contention: the demotion of another Captain to firefighter (not engineer) following Plaintiff’s sustained 2002 or 2003 complaint of sexual harassment. (UMF #216; Leitzke Depo., 78:16-25.)

Plaintiff’s other “pattern” evidence similarly fails to establish pretext.

FEHA Retaliation. It is undisputed that Plaintiff suffered an adverse employment action in that she was demoted. Additionally, Plaintiff was placed on administrative leave on July 7, 2022 and despite conclusion of the investigation into the reporter’s complaint on September 23, 2022, remained on administrative leave for a total of **nineteen months**. (UMF #22; Exh. 5.; PSSM 280.)

Typically paid administrative leave is not considered punitive because it is temporary in nature and an employee is considered to have been made and kept whole. But when administrative leave becomes prolonged such that it disrupts career advancement (see UMF #32 – temporary Training Battalion Chief) or impacts working conditions (see UMF #36 – exclusion from vacation selection process, annual physical exams or meeting with mental health professional) or impacts reputation, an argument can be made that it is punitive. (*Whitehall v. County of San Bernadino* (2017) 17 Cal.App.5th 352, 367; *Jeffra v. California State Lottery* (2019) 39 Cal.App.5th 471, 484-485 [“...although an adverse employment action must materially affect the terms, conditions or privileges of employment to be actionable, the determination of whether a particular action or course of conduct rises to the level of actionable conduct should take into account the unique circumstances of the affected employee as well as the workplace context of the claim.”])

Plaintiff engaged in protected activity. On November 18, 2022, Plaintiff submitted a complaint about gender discrimination to Defendant’s human resources department, leading to Chief Long’s investigation for potential gender discrimination. (UMF #291-294; Exh. 130.) This complaint post-dated the October 2022 notice of intent to demote by which Chief Long first indicated a desire to demote Plaintiff but preceded actual imposition of the demotion. (UMF #31, 264.) The complaint also coincided with the prolonged administrative leave which far exceeded the time necessary to complete the investigation into the reporter’s complaint. The temporal proximity between the protected activity and adverse action satisfies Plaintiff’s prima facie burden to show a causal nexus. (*Arteaga v. Brink’s, Inc.* (2008) 163 Cal.App.4th 327, 353.)

As with the claim of gender discrimination Defendant offers a legitimate, non-retaliatory reason for the adverse action, stating that Chief Long lost confidence in Plaintiff's leadership ability and was fully within his authority to decline to follow the investigator's and *Skelly* officer's recommendations and demote her.

But Defendant does not offer a legitimate, non-retaliatory reason for the prolonged administrative leave other than its conclusion that it is not punitive or an adverse employment action. Alternatively, the unduly prolonged administrative leave creates a question of fact as to retaliatory animus and pretext.

Failure to Prevent Discrimination. Plaintiff's failure to prevent discrimination claim, where supported by admissible evidence, relies on allegations of harassment for which either effective remedial action was taken or which were not reported and/or are so outdated and non-consecutive as to be untimely under FEHA.

With respect to her complaint in 2002 or 2003 about another Captain leaving sexual images on a computer, Defendant City took effective remedial action resulting in his demotion to firefighter. (#UMF 216; Leitzke Depo., 78:16-25.) Plaintiff's concern about her apprentice touching her and others in a non-sexual, non-gender specific manner was addressed and resolved. (#UMF 222; Leitzke Depo. 173:6-17; Exh. 122.)

Outdated complaints from 23-26 years earlier which were not reported are untimely and do not form a basis for a pattern of harassment that City failed to prevent. (See e.g. Leitzke Depo., 102:4-104:10 [firefighter in underwear/towel]; 117:20-119:2 [promotional badge]; see *Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 59 [persistent, ongoing pattern required to establish harassment].)

Plaintiff's complaint in 2012 that Captain Meyer called her "a fat bitch that needs to go" which she says was not investigated by Human Resources is untimely.

Allegations that since 2012 Plaintiff was not selected for the apparatus assignment, required on an unspecified date to do clerical work when others responded to a fire, denied an opportunity to act as an Engineer at Station 25, not chosen as a proctor for a recruitment or that someone used the word "firemen" instead of "firefighters" or that a male firefighter used space designated for female firefighters when no female firefighters were present are not actionable – especially in light of Plaintiff's ongoing promotions and increasing supervisorial responsibilities during these same periods. (See UMF#46-62.)

Conclusion. Defendant's motion for summary judgment is construed as a motion for summary adjudication. Summary adjudication is granted as to Plaintiff's causes of action for FEHA gender discrimination and for failure to prevent discrimination or harassment. Defendant's motion for summary adjudication as to Plaintiff's cause of action for FEHA retaliation is denied.

TRIAL MANAGEMENT CONFERENCE MOTION TO BIFURCATE

The court did not agree to the tardy filing of trial management conference packets by the parties which they unilaterally chose to do despite the court's trial management orders and local rules. Each party shall explain why they should not be sanctioned up to \$1,000 for failure to timely file TMC packets.

Notably, despite a notice of late filing by Plaintiff's counsel on 6/4/26 indicating it would file its TMC by 6/8/26 at the time of this review, the court still had not received a TMC packet from Plaintiff. E-file is not instantaneous and requires processing. A physical copy of Plaintiff's TMC packet was delivered at 1:30 p.m. on June 10 only after Department 8 staff called Plaintiff's counsel to inquire about its location. The court is unable to review untimely filings.

Trial Management Conference – Tentative Rulings

The following are the tentative rulings in anticipation of the Trial Management Conference scheduled for June 11, 2026 at 9:30 a.m.

Please note this trial is trailing another jury trial that has confirmed. However, the parties should continue to be prepared for trial in the event that the previously confirmed trial does not proceed or ends earlier than anticipated.

A. Statement of the Case:

In light of the court's TR for the MSJ, the court intends to provide the following statement to jurors:

Plaintiff Melisse Leitzke was a Captain with the City of Vallejo Fire Department. Plaintiff alleges that during her employment she was retaliated against after she complained of gender discrimination to her employer.

Defendant City of Vallejo denies that Plaintiff was subjected to retaliation based upon her complaint of gender discrimination.

B. Plaintiff's Trial Management Statement and Motions in Limine

No timely TMC packet was received by the court. Untimely motions in limine will not be considered and are reserved as trial objections.

C. Defendant's Trial Management Statement and Motions in Limine

The court reviewed Defendant's 436 page Trial Management Statement (which was untimely filed on June 8, 2026).

1. **Offer of Proof as to Witnesses:** The offer of proof shows a large number of witnesses and is inconsistent with a time estimate of 6 days. Defendant's proposed time estimate of 68 hours of testimony equates to a minimum of 12 days without jury selection, instruction, arguments and deliberations. Based upon Defendant's anticipated evidence, and the proposed 62 defense exhibits, the court anticipates a trial length of 22 days. It appears the parties seriously underestimated the length of time for this trial.

2. **Defendant's Exhibit List:** Please meet and confer to determine whether any of Defendant's 62 identified exhibits can be classified as joint exhibits and whether admission into evidence can be stipulated. Provide an updated list of joint or stipulated exhibits. (See Trial Management Order 7/2/25 section 5.a - parties to prepare a list of joint exhibits or exhibits parties stipulate may be admitted into evidence., p. 5.)

Given the volume of proposed exhibits, Defendant should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror's use during jury deliberations.

3. **Defendant's Motions in Limine:**

Based upon the outcome of the MSJ, these rulings may be revised if causes of action related to the rulings do not proceed to trial.

Defendant's MIL 1: Exclude propensity and character evidence related to items specified in Paragraph 1 of MIL1. **GRANTED.**

Defendant's MIL2: Exclude evidence of media coverage. **GRANTED.**

Defendant's MIL3: Exclude evidence related to the November 2024 constructive discharge. **TBD**

Plaintiff should be prepared to address why this motion should not be granted. The court now understands from the pleadings that during the 19 months of administrative leave during which Plaintiff was not returned to active duty, Plaintiff moved out of state to Minnesota. City rules apparently require firefighters to live locally in order to be called into duty. After she was ordered reinstated by the arbitrator, Defendant made arrangements to return Plaintiff to duty but then Plaintiff was subsequently off on a combination of sick leave and FMLA. This suit was filed June 27, 2023. A First Amended Complaint was filed September 12, 2023. Plaintiff resigned in November 2024 which she now characterizes as constructive discharge. The claim of constructive discharge in November 2024 is not an act that is like or reasonably related to the original claims of discrimination and retaliation, especially given Plaintiff's intervening use of sick leave and FMLA. Further, the City's enforcement of a rule requiring firefighters to live in the vicinity in order to report to duty is not an issue raised in

the administrative complaint or First Amended Complaint. When the difference between the charge and the complaint is a matter of adding an entirely new basis for alleged discrimination (or retaliation), expansion of the complaint is not appropriate. (*Okoli v. Lockheed Technical Operations Co.* (1995) 36 Cal. App.4th 1607, 1615.)

Defendant's MIL 4: Exclude evidence of allegations prior to June 12, 2020.

GRANTED IN PART. Before eliciting evidence related to alleged discrimination prior to June 12, 2020, the parties shall seek *in limine* permission to admit the evidence. Any employee with a 20 year career with the same employer will experience challenges as well as success. The court is concerned about nexus, foundation, hearsay and 352.

Defendant's MIL 5: Exclude evidence not produced in discovery including undisclosed expert opinions. **GRANTED.**

Defendant's MIL 6: Exclude unqualified layperson opinion regarding Plaintiff's damages. **GRANTED IN PART AND DENIED IN PART.** Plaintiff is not qualified to testify as a layperson regarding losses to her PERS calculation, but she but can testify generally as to her salary and overtime as a firefighter employed by Defendant and her experience applying to or working with other fire departments. Plaintiff can testify generally as to her emotional state and symptoms and general feelings of depression but cannot testify as to a medical diagnoses or prognosis.

Defendant's MIL 7: GRANTED.

Defendant's MIL 8: GRANTED IN PART. All evidence must have a foundation and hearsay is inadmissible. Based on the MSJ, it appeared that Plaintiff had ideas about discipline or treatment of other employees that did not in many instances have evidentiary foundation. However, the court will not pre-try this case via motion in limine and Plaintiff may seek to elicit information from others with personal knowledge. Defendant may raise a trial objection as appropriate.

Defendant's MIL 9: Exclude evidence of touching by apprentice. The court is inclined to grant this MIL. Plaintiff acknowledges the apprentice she was superior to touched her and other male firemen in a non-gender, non-sexual manner but it was nonetheless unwanted. Plaintiff also appears to acknowledge that the apprentice was spoken to and ceased this behavior. How is this incident relevant to Plaintiff's trial claims?

Defendant's MIL 10: Exclude evidence of failure to investigate NIOSH 5 Warnings. **DENIED.**

4. Defendant's Motion to Bifurcate

Defendant's motion to bifurcate liability from damages is GRANTED. Plaintiff may still testify in her case in chief as to her injuries to establish the elements of her claim, but evidence monetizing those injuries, including testimony of experts, is reserved to the damages phase.

5. Proposed Jury Instructions and Verdict Form:

The court reserves over proposed jury instructions and verdict forms.

Please meet and confer regarding retention of a single court reporter between the parties for each day of trial. The court reporter must be available during jury deliberations for read-back or have prepared a final transcript. An order appointing the reporter pro tem shall be submitted in advance to ensure the reporter is available and qualified. The court will not continue the case due to the absence of a reporter.

Parties shall make arrangements with the courtroom clerk to pre-mark exhibits and to lodge all originals of transcripts prior to trial.

Please reduce all stipulations to writing. The stipulations will be marked as a court exhibit and deemed admitted. Parties to notify the court when they wish the court to read the stipulation to the jury.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002